

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Eric Rigie	Team: Squad #01	CCRB Case #: 201507306	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 08/29/2015 6:30 PM	Location of Incident: Inside the PSA 5 stationhouse	18 Mo. SOL 2/28/2017	Precinct: 25		
Date/Time CV Reported Sat, 08/29/2015 7:26 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sat, 08/29/2015 7:26 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Sean Mccarren	4311	943542	PSA 5
2. LT Christophe Popovic	00000	920717	PSA 5

Officer(s)	Allegation	Investigator Recommendation
A . SGT Sean Mccarren	Abuse: Sgt. Sean McCarren refused to provide his name and shield number to § 87(2)(b) and § 87(2)(b)	A . Substantiated
B . LT Christophe Popovic	Abuse: Lt. Christopher Popovic interfered with § 87(2)(b) and § 87(2)(b)'s ability to obtain Sgt. Sean McCarren's name and shield number.	B . Substantiated

Case Summary

On August 29, 2015, at approximately 6:30 p.m., § 87(2)(b) went with her father, § 87(2)(b) into the PSA 5 Stationhouse in Manhattan to request information on her cousin, § 87(2)(b) who was arrested the night before by PSA 5 officers. § 87(2)(b)

§ 87(2)(b) secretly audio recorded this incident. On entering the stationhouse, § 87(2)(b) spoke to Sgt. Sean McCarren, who was working on a computer terminal behind the front desk and an unknown female officer. Sgt. McCarren, whose official tour did not begin until 7:00 p.m., was in plainclothes during the incident. § 87(2)(b) explained to Sgt. McCarren that her cousin, § 87(2)(b) had been arrested the night before and that she wanted to know his charges. Sgt. McCarren and the unknown female officer explained to § 87(2)(b) that this information was confidential and could only be released to her by § 87(2)(b) particularly since § 87(2)(b) is an adult and had already refused to provide this information to § 87(2)(b). § 87(2)(b) spoke up at that point and asked why this information could not be released to a relative. Sgt. McCarren and the female officer continued to explain to § 87(2)(b) that the information could only be released by § 87(2)(b) and § 87(2)(b) walked a short distance away from the front desk and § 87(2)(b) told § 87(2)(b) to ask for Sgt. McCarren's name and shield number. § 87(2)(b) returned to the front desk and asked Sgt. McCarren to provide his name and shield number. Sgt. McCarren, who recognized § 87(2)(b) from previous encounters, replied to § 87(2)(b) "Did he tell you to get that?" referring to § 87(2)(b). § 87(2)(b) responded, "Well I can't have you shield and name now?" Sgt. McCarren replied, "You want all of it? Everyone?" § 87(2)(b) responded, "Just you." Sgt. McCarren asked again, "Which person?" § 87(2)(b) replied for § 87(2)(b) "Just you, the one she was talking to." Sgt. McCarren did not respond to these requests and never provided his name and shield number to the § 87(2)(b) (**Allegation A**). At that point, Lt. Christopher Popovic joined the conversation and explained to § 87(2)(b) that Sgt. McCarren did not need to provide his name and shield number, because he was not on duty and not in uniform. § 87(2)(b) responded that Sgt. McCarren was at his place of business inside a stationhouse and repeatedly asked if he and § 87(2)(b) could get Sgt. McCarren's name and shield number. Lt. Popovic repeatedly replied to § 87(2)(b) that Sgt. McCarren did not have to provide his name and shield number, because he was out of uniform and off duty (**Allegation B**). § 87(2)(b) and § 87(2)(b) then left the stationhouse without ever obtaining Sgt. McCarren's name or shield number.

§ 87(2)(b) provided a 6:22 minute audio recording that he secretly made during the incident.



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Mediation, Civil and Criminal Histories

- § 87(2)(b) and § 87(2)(b) accepted mediation during their phone statements, but § 87(2)(b) later rejected mediation during his CCRB interview. § 87(2)(b)

§ 87(2)(b)

- On October 27, 2015, a FOIL registration confirmed that neither § 87(2)(b) nor § 87(2)(b) filed a notice of claim regarding this incident (01 Board Review).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (03 Board Review).
- § 87(2)(b) has been involved in 13 other CCRB cases involving 27 allegations. § 87(2)(b)
- Sgt. McCarren has been a member of the NYPD for 8 years and has four other cases involving seven allegations and no substantiated allegations. § 87(2)(g)
- Lt. Popovic has been a member of the NYPD for 17 years and has four previous CCRB cases involving six allegations with two substantiated allegations for a frisk and a search. § 87(2)(g)

Potential Issues

- There were no independent witnesses.
- § 87(2)(b) provided audio, but not video of the incident.

Findings and Recommendations

Allegation A –Abuse of Authority: Sgt. Sean McCarren refused to provide his name and shield number to § 87(2)(b) and § 87(2)(b)

Allegation B –Abuse of Authority: Lt. Christopher Popovic interfered with § 87(2)(b) and § 87(2)(b)'s ability to obtain Sgt. Sean McCarren's name and shield number.

§ 87(2)(b) said that when she walked up to the front desk inside the PSA 5 stationhouse, she spoke first to Sgt. McCarren who was working at a computer terminal behind the desk. § 87(2)(b) came with her to the stationhouse and stood nearby. § 87(2)(b) asked Sgt. McCarren to provide her with § 87(2)(b) charges and at first he cooperated, but then an unknown female officer asked if § 87(2)(b) had called her. § 87(2)(b) explained that he had, but that § 87(2)(b) refused to tell her his charges. Sgt. McCarren and the female officer then explained

that they could not release that information to her despite her being a relative. § 87(2)(b) walked away from the desk and § 87(2)(b) told her to get Sgt. McCarren's name and shield number. § 87(2)(b) walked back to the desk and asked Sgt. McCarren if she could have his name and shield number. Sgt. McCarren asked if she wanted "it all." § 87(2)(b) replied yes. Sgt. McCarren asked if § 87(2)(b) wanted everyone's name and shield number. § 87(2)(b) pointed at Sgt. McCarren and told him that she only wanted his. Sgt. McCarren then appeared to hide behind a large fax machine. § 87(2)(b) stepped in and attempted to ask for Sgt. McCarren's name and shield number on her behalf. Lt. Popovic then stepped in and said Sgt. McCarren could not provide his name or shield number, because he was not in uniform. § 87(2)(b) said that she asked Sgt. McCarren to provide his name and shield number twice and that § 87(2)(b) asked Sgt. McCarren to provide his information to § 87(2)(b) numerous times. The § 87(2)(b) left the stationhouse without ever obtaining Sgt. McCarren's name and shield number (05 Board Review).

§ 87(2)(b) generally confirmed § 87(2)(b)'s statement that Sgt. McCarren answered § 87(2)(b)'s questions regarding § 87(2)(b) and then refused to provide his name and shield number. § 87(2)(b) added that he said, "Sarge, can I get your name and badge number please?" to Sgt. McCarren. § 87(2)(b) also confirmed that Lt. Popovic told him that Sgt. McCarren did not need to provide his name and shield number, because he was off duty and in plainclothes (06 Board Review).

In § 87(2)(b)'s audio recording of the incident, § 87(2)(b) can be heard asking, "Can I have your shield and your name?" at 03:40. A male voice can be heard replying, "Did he tell you to get that?" § 87(2)(b) replies, "Well I can't have you shield and name now?" The same voice is heard replying, "You want all of it? Everyone?" § 87(2)(b) is then heard saying, "Just you." The same male voice asks, "Which person?" § 87(2)(b) responds again, "Just you. The one she was talking to." A deeper male voice is then heard saying at 04:10, "Just so we're procedurally clear, they don't have to provide our shield and name unless they're in uniform and on duty. I'll provide mine for you anyway. I'm Lt. Popovic PSA 5. We never see each other, but just so you know what the actual procedure is for the command. If we're in uniform and performing duty, that's when we have to provide a name and shield number" After this conversation, a female officer is heard saying, "You can get mine" referring to her name and shield number. § 87(2)(b) is heard refusing this information by saying, "No we spoke to him. We want his. We want his. We're requesting his. I mean, he could just say yes or no. We walk out the door. It's a yes or no question" (see § 87(2)(b)'s audio of the incident linked above).

Sgt. McCarren said that he may have responded to some of § 87(2)(b)'s questions, but that § 87(2)(b) was mostly speaking to the female TS operator, whose name he did not remember. Sgt. McCarren said that when § 87(2)(b) asked for a name and shield number, she was not clearly speaking to any specific officer and because the TS operator answered most of her questions, he was not sure that she was speaking to him. When played the audio of the incident, Sgt. McCarren explained that he asked § 87(2)(b) if she wanted everyone's name and shield number, because he wanted her to clarify whose information she wanted. Sgt. McCarren did not hear § 87(2)(b) specifying that § 87(2)(b) only wanted his information. Sgt. McCarren said that § 87(2)(b) stood approximately three feet away from § 87(2)(b) when she requested a name and shield number. Sgt. McCarren said that Lt. Popovic then stepped forward and spoke to the § 87(2)(b) At

that point, Sgt. McCarren considered his role in the conversation to be over, because a superior officer was assisting the § 87(2)(b) Sgt. McCarren did not hear most of Lt. Popovic's conversation with the § 87(2)(b) After listening to the audio from the incident, Sgt. McCarren said that he did not hear Lt. Popovic tell the § 87(2)(b) that officers were not required to provide their names or shield numbers when off duty and not in uniform. Sgt. McCarren's understanding of the Patrol Guide was that officers always had to provide their names and shield numbers when requested by a civilian. Sgt. McCarren did not ever provide his name or shield number to § 87(2)(b) or § 87(2)(b) because he was not sure that § 87(2)(b) specifically requested his information, he did not hear § 87(2)(b)'s requests, and Lt. Popovic assisted the § 87(2)(b) so he considered his role in the conversation to be over. Sgt. McCarren said that Lt. Popovic's conversation with the § 87(2)(b) did not affect his decision to not provide his name and shield number to the § 87(2)(b) (08 Board Review).

Lt. Popovic acknowledged that the § 87(2)(b) came into the PSA 5 stationhouse and that § 87(2)(b) asked Sgt. McCarren to tell her the charges filed against her cousin, § 87(2)(b) Lt. Popovic said that § 87(2)(b) was not happy with this response and so § 87(2)(b) requested Sgt. McCarren's name and shield number. Lt. Popovic said that Sgt. McCarren failed to provide his name and shield number to § 87(2)(b) but did not remember if Sgt. McCarren verbally refused or was just non-responsive. At this point, Lt. Popovic recognized § 87(2)(b) § 87(2)(b)

§ 87(2)(b) Lt. Popovic acknowledged that he explained to § 87(2)(b) that Sgt. McCarren was not required to provide his name and shield number to a civilian when he was off duty and not in uniform. Lt. Popovic explained that this procedure was in the Patrol Guide, but could not remember the section number (07 Board Review).

P.G. 203-15, regarding off duty contact, says that all off duty officers who are in uniform must conduct themselves as if they were on duty, and will be held accountable accordingly. P.G. 203-15 also says that all officers are subject at all times to the provisions of the Patrol Guide and other Department regulations (10 Board Review).

P.G. 203-09, regarding public contact, says that officers must clearly state their rank, name, shield number, and command, or otherwise provide them to anyone who requests that they do so (09 Board Review).

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Therefore, it is recommended that **Allegations A** and

B be *substantiated*.

Squad: 1

Investigator: _____
Signature Print Date

Pod Leader: _____
 Title/Signature Print Date

Attorney: _____
 Title/Signature Print Date